**UNITED STATES DISTRICT COURT**
**DISTRICT OF CONNECTICUT**

ANTHONY WHITFIELD and ROCHELLE RIBEIRO WHITE, individually and on behalf of all others similarly situated,
Plaintiffs,

v.

MEDGUARD ALERT, INC.,
Defendant.

Case No. 3:26-cv-00324-KAD

Date: May 6, 2026

**DEFENDANT'S MEMORANDUM OF LAW IN SUPPORT OF ITS MOTION TO DISMISS THE COMPLAINT**

**TABLE OF CONTENTS**


**Page**

PRELIMINARY STATEMENT....1

LEGAL STANDARDS....2

ARGUMENT....3

A. PLAINTIFF WHITFIELD CANNOT ESTABLISH THAT HE RECEIVED MORE THAN ONE TELEPHONE SOLICITION FROM DEFENDANT AFTER HIS NUMBER WAS PLACED ON THE NATIONAL DO-NOT-CALL REGISTRY FOR AT LEAST 31 DAYS....3

B. THERE IS NO PRIVATE RIGHT OF ACTION UNDER 47 U.S.C. § 227(C)(5) FOR ALLEGED VIOLATIONS OF 47 C.F.R. § 64.1601(E)....5

CONCLUSION....7

## TABLE OF AUTHORITIES

**Page(s)**

### Cases

*Ashcroft v. Iqbal*, 556 U.S. 662 (2009)....2
*Barton v. Delfgauw*, 2025 LX 373885 (W.D. Wash. Aug. 18, 2025)....4
*Bell Atl. Corp. v. Twombly*, 550 U.S. 544 (2007)....2
*C-Tech of New Haven, Inc. v. Univ. of Conn. Health Ctr.*, 2016 U.S. Dist. LEXIS 84098 (D. Conn. June 29, 2016)....2
*Dane v. UnitedHealthcare Ins. Co.*, 974 F.3d 183 (2d Cir. 2020)....2
*Dobronski v. Tobias & Assocs., Inc.*, No. 23-10331, 2024 U.S. Dist. LEXIS 47309 (E.D. Mich. Mar. 18, 2024)....6
*Gillam v. Reliance First Capital, LLC*, 2023 U.S. Dist. LEXIS 29477 (E.D.N.Y. Feb. 22, 2023)....4
*Greene v. Select Funding LLC*, No. 2:20-cv-07333-RGK-KS, 2021 LX 64174 (C.D. Cal. Feb. 5, 2021)....4
*Griffin v. Am.-Amicable Life Ins. Co. of Tex.*, No. 6:24-cv-00243-MC, 2024 U.S. Dist. LEXIS 175344 (D. Or. Sep. 27, 2024)....6
*Jones v. Royal Admin. Services, Inc.*, 887 F.3d 443 (9th Cir. 2018)....4
*Lee v. Yale Univ.*, 624 F. Supp. 3d 120 (D. Conn. 2022)....2
*Meyer v. Capital All. Grp.*, 2017 U.S. Dist. LEXIS 183690 (S.D. Cal. Nov. 6, 2017)....5
*Pension Ben. Guar. Corp. ex rel. St. Vincent Catholic Med. Ctr. Ret. Plan v. Morgan Stanley Inv. Mgmt. Inc.*, 712 F.3d 705 (2d Cir. 2013)....2
*Raines v. Byrd*, 521 U.S. 811 (1997)....3
*Simon v. E. Ky. Welfare Rts. Org.*, 426 U.S. 26 (1976)....3
*Spokeo, Inc. v. Robins*, 136 S. Ct. 1540 (2016)....3
*Worsham v. Travel Options, Inc.*, 2016 U.S. Dist. LEXIS 118774 (D. Md. Sept. 2, 2016), aff'd, 678 F. App'x 165 (4th Cir. 2017)....5

### Statutes

47 U.S.C. § 227 (Telephone Consumer Protection Act)....1
47 U.S.C. § 227(c)(5)....1,4,5,6

### Federal Rules

FRCP 12(b)(1)....1,3,7
Rule 12(b)(6)....1,2,3,7

### Regulations

47 C.F.R. § 64.1200(c)(2)....1,4
47 C.F.R. § 64.1601(e)....1,5,6

Defendant MedGuard Alert, Inc. ("MedGuard" or "Defendant"), through undersigned counsel, respectfully submits this memorandum of law in support of its motion to dismiss with prejudice the Complaint ("Complaint") (ECF Doc. 1) that was filed by Plaintiffs Anthony Whitfield ("Whitfield") and Rochelle Ribeiro White ("White") (collectively "Plaintiffs"). This motion is brought under FRCP Rules 12(b)(6) and 12(b)(1).

**PRELIMINARY STATEMENT**

Plaintiffs seek statutory damages and injunctive relief for themselves and a putative nationwide class based on telemarketing phone calls they allegedly received from or at the direction of Defendant in October 2025. Plaintiffs bring three causes of action, alleging that the calls: 1) violated 47 C.F.R. 64.1200(C)(2) and 47 U.S.C § 227 of the Telephone Consumer Protection Act ("TCPA") because the calls were made to Whitfield while his number was on the National Do Not Call Registry; 2) violated 47 C.F.R. § 64.1601(e) because caller identification information was not properly transmitted; and 3) violated 47 U.S.C. § 227(b) because the messages were pre-recorded.

As set forth in detail below, Plaintiffs' Complaint must be dismissed in its entirety and with prejudice because:

1) As to the first cause of action, which according to the Complaint only pertains to Whitfield, Whitfield cannot establish that he received more than one call from Defendant after his number had been on the National Do-Not-Call Registry for at least 31 days.
2) As to the second cause of action, there is no private right of action under 47 U.S.C. § 227(c)(5) for alleged violations of 47 C.F.R. § 64.1601(e).
3) As to the third cause of action, which according to the Complaint only pertains to Plaintiff White, the Complaint contains no supporting facts that would enable the

Court to plausibly infer that the calls were pre-recorded calls. Rather, the Complaint's allegation that the calls were pre-recorded is entirely conclusory.

4) Plaintiffs lack standing to pursue injunctive relief. There is no indication in the Complaint that Defendant called Plaintiffs again between October 2025 and the filing of the Complaint on March 4, 2026. Under those circumstances, Plaintiffs cannot demonstrate a substantial risk that they will ever receive another allegedly violative call from Defendant.

**LEGAL STANDARDS**

Rule 12(b)(6) provides for dismissal where plaintiffs fail to state a claim upon which relief can be granted. A legal claim requires pleading sufficient facts. Bell Atl. Corp. v. Twombly, 550 U.S. 544, 556-57 (2007). "Bare assertion[s]" or "conclusory allegations" will not suffice. *Id.* Nor will a "formulaic recitation of the elements." Ashcroft v. Iqbal, 556 U.S. 662, 681 (2009). *See also id.* at 678 (pleadings must contain "more than an unadorned, the-defendant-unlawfully-harmed-me accusation"). *See also* Lee v. Yale Univ., 624 F. Supp. 3d 120, 143 (D. Conn. Aug. 30, 2022) ("In considering a motion to dismiss, the Court is 'not required to credit conclusory allegations or legal conclusions couched as factual allegations.'" (quoting Dane v. UnitedHealthcare Ins. Co., 974 F.3d 183, 188 (2d Cir. 2020); Pension Ben. Guar. Corp. ex rel. St. Vincent Catholic Med. Ctr. Ret. Plan v. Morgan Stanley Inv. Mgmt. Inc., 712 F.3d 705, 724 (2d Cir. 2013) (affirming dismissal where plaintiff did "not support its [] claim with factual allegations sufficient to elevate it from the realm of mere 'legal conclusions'") (citing *Iqbal*, 556 U.S. at 679).

Instead, Plaintiffs must allege "enough fact[s] to raise a reasonable expectation that discovery will reveal evidence" supporting their allegations. *Twombly*, 550 U.S. at 556. *See also* C-Tech of New Haven, Inc. v. Univ. of Conn. Health Ctr., 2016 U.S. Dist. LEXIS 84098, *5 (D. Conn Jun 29, 2016)

("To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face.") (quoting *Iqbal*, 556 U.S. at 678).

Dismissal under 12(b)(1) is appropriate if Plaintiffs cannot demonstrate standing. Article III, § 2, of the Constitution limits the federal courts' jurisdiction "to actual cases or controversies." Simon v. E. Ky. Welfare Rts. Org., 426 U.S. 26, 37, 96 S. Ct. 1917, 48 L. Ed. 2d 450 (1976). The case-or-controversy provision includes among its requirements that putative plaintiffs "must establish that they have standing to sue." Raines v. Byrd, 521 U.S. 811, 818, 117 S. Ct. 2312, 138 L. Ed. 2d 849 (1997). To have standing, a "plaintiff must have (1) suffered an injury in fact, (2) that is fairly traceable to the challenged conduct of the defendant, and (3) that is likely to be redressed by a favorable judicial decision." Spokeo, Inc. v. Robins, 136 S. Ct. 1540, 1547, 194 L. Ed. 2d 635 (2016). To establish the necessary causal connection between the injury and the conduct complained of, the injury "fairly can be traced to the challenged action of the defendant, and not . . . th[e] result [of] the independent action of some third party not before the court." *Simon*, 426 U.S. at 41-42.

Here, the court should dismiss Plaintiffs' Complaint under 12(b)(6) and 12(b)(1).

## ARGUMENT

### A. PLAINTIFF WHITFIELD CANNOT ESTABLISH THAT HE RECEIVED MORE THAN ONE TELEPHONE SOLICITION FROM DEFENDANT AFTER HIS NUMBER WAS PLACED ON THE NATIONAL DO-NOT-CALL REGISTRY FOR AT LEAST 31 DAYS

In the Complaint, Whitfield (the only Plaintiff asserting a DNC violation claim) alleges that he placed his number on the National Do Not Call Registry on September 17, 2025 (ECF Doc. 1, para. 32). He alleges that he received a violative call, which he rejected (i.e. he did not answer) on October 8, 2025, but there are no plausible allegations that this call was initiated by or on behalf of MedGuard Alert, Inc. and so this call has not and cannot plausibly be attributed to MedGuard. (ECF Doc. 1, para 34). Thereafter, on October 27, 2025, Whitfield is alleged to have received a violative, automated

telemarketing call that purportedly traces back to Defendant by way of a callback number. (ECF Doc. 1, para 36).

Whitfield, as the sole Plaintiff bringing the first cause of action, claims that Defendant violated the TCPA by calling him despite his number being registered on the National Do-Not-Call Registry. But Whitfield's claim fails. Not only did Whitfield fail to answer the October 8, 2025 call, which occurred less than 31 days after his number was registered on the National Do Not Call List, and thus occurred during the statutory grace period,[1] but Whitfield does not even allege – let alone allege plausibly – that the October 8th call was from the Defendant. Thus, there is only one call that can be considered for purposes of this cause of action (i.e. the October 27th call).

The TCPA gives consumers "who ha[ve] received more than one telephone call within any 12-month period by or on behalf of the same entity in violation of the[se] regulations" a private right of action. Jones v. Royal Admin. Services, Inc., 887 F.3d 443, 448 (9th Cir. 2018) (citing 47 U.S.C. § 227(c)(5)) (emphasis added). The law prohibits an entity from making more than one telephone solicitation to the same person within a twelve-month period, and so "more than one telephone solicitation is needed to trigger a violation." Greene v. Select Funding LLC, No. 2:20-cv-07333-RGK-KS, 2021 LX 64174, at *12 (C.D. Cal. Feb. 5, 2021) (dismissing Plaintiff's DNC claim because Plaintiff failed to plausibly allege that he received more than one call that was a telephone solicitation). Indeed, in Gillam v. Reliance First Capital, LLC, 2023 U.S. Dist. LEXIS 29477, at *6-7 (E.D.N.Y. Feb. 22, 2023) the court dismissed plaintiff's DNC claim and held:

> "...while Plaintiff alleges receiving multiple calls, he only alleges answering one call and having one conversation [ ]. Even if the Court were to assume arguendo that Plaintiff had sufficiently pled receipt of a telephone solicitation [ ], his failure to plausibly plead

[1] The TCPA and 47 C.F.R. § 64.1200 prohibit "telephone solicitation to residential numbers on the DNCR, and allow[] a grace period if the called number was on the registry less than 31 days." Barton v. Delfgauw, 2025 LX 373885, at *7 (W.D. Wash. Aug. 18, 2025) citing § 64.1200(c)(2)(i)(D).

> receipt of at least one additional telephone solicitation from [Defendant] within the requisite 12-month period is fatal to his Section 227(c)(5) cause of action."

Here, there is an even stronger basis for dismissing the first cause of action than in the above-cited cases. This is because not only did Whitfield admittedly not answer the October 8, 2025 call, but the call is not even alleged to have come from Defendant. Indeed, the October 8th call and the October 27th call originated from different telephone numbers. (ECF Doc. 1, paras 34 & 36). Moreover, the October 8th call was received less than 31 days after Whitfield placed his number on the Do-Not-Call Registry. Accordingly, Whitfield did not receive more than one telephone solicitation and this cause of action must be dismissed with prejudice.[2]

## B. THERE IS NO PRIVATE RIGHT OF ACTION UNDER 47 U.S.C. § 227(C)(5) FOR ALLEGED VIOLATIONS OF 47 C.F.R. § 64.1601(E)

The second cause of action alleges a private right of action under 47 U.S.C. § 227(c)(5) for violations of the caller ID requirements codified in the TCPA's implementing regulations, 47 C.F.R. § 64.1601(e). In essence, Plaintiffs allege that the Defendant did not transmit caller identification information during the calls. Even if we accept Plaintiffs' conclusory facts in this regard (which the Court should not as they fail to satisfy the Iqbal/Twombley plausibility standard), Plaintiffs nevertheless are barred from asserting this claim because there is no private right of action. While it does not appear that the 2nd Circuit has explicitly ruled on this issue, as set forth below, various courts have analyzed the issue and have ruled that there is no private right of action under 47 C.F.R. § 64.1601(e).

Worsham v. Travel Options, Inc. and Meyer v. Capital All. Grp. are instructive. In *Worsham*, the court examined 47 C.F.R. § 64.1601(e) and found it was not clearly promulgated under either

[2] While co-Plaintiff White explicitly does not join in this first cause of action, Defendant notes that White cannot join in this cause of action because according to the Complaint her number was not on the Do Not Call Registry until December 9, 2025, which is two months after she allegedly received two calls in October – only one of which she answered and only one of which she alleges has some connection to Defendant.

subsection (b) or (c) of the TCPA because the caller ID function "does not fit neatly into the focus of either subsection, neither of which requires the use of such technology to accomplish their respective purposes." *Id.* at *11. Thus, a violation § 64.1601(e) did not fall within the private right of action granted by subsection (b) or (c). Indeed, the court recognized that when the FCC promulgated the regulation, it said that "[c]aller ID requirements will improve the ability of consumers to identify and enforce do-not-call rights against telemarketers," which appeared to "support consumers' enforcement efforts under the TCPA's subsection (c), rather than to create a separate mechanism upon which a consumer can make an actionable claim." *Id.* at *12, emphasis in original. The court determined the regulation was a violation of technical and procedural standards under subsection (d), so no private right of action exists and thus the count failed to state a claim for relief. Similarly, in *Meyer*, the court dismissed the plaintiff's claim for violation of 47 C.F.R. § 64.1601(e) with prejudice because it did not create a private right of action. *Meyer*, 2017 U.S. Dist. LEXIS 183690, at * 47.

Many other courts have similarly found that Section 64.1601(e) was promulgated under subsection (d) of the TCPA and thus there is no private right of action. *See* Griffin v. Am.-Amicable Life Ins. Co. of Tex., No. 6:24-cv-00243-MC, 2024 U.S. Dist. LEXIS 175344 * 15 (D. Or. Sep. 27, 2024) ("Seeing no reason to reject the thoughtful analysis of [Meyer and Worsham], this Court holds that Plaintiffs may not pursue a private right of action under 47 U.S.C. § 227(c)(5) for alleged violations of 47 C.F.R. § 64.1601(e)"); Dobronski v. Tobias & Assocs., Inc., No. 23-10331, 2024 U.S. Dist. LEXIS 47309 (E.D. Mich. Mar. 18, 2024) (dismissing claim under Section 64.1601(e) on grounds that it does not create a private right of action). This Court should follow the reasoning of the courts cited above.

For these reasons, there is no private right of action and Plaintiff's second cause of action must be dismissed with prejudice.

## CONCLUSION

For the reasons stated herein, Defendant respectfully requests that the Complaint be dismissed in its entirety and with prejudice under FRCP Rules 12(b)(1) and 12(b)(6).

Dated: May 6, 2026

Respectfully submitted,

BY: /s/ Keith R. Rudzik
Keith R. Rudzik, Fed. Bar No. ct24007
Howard, Kohn, Sprague & FitzGerald LLP
Post Office Box 261798
Hartford, Connecticut 06126-1798
Phone: (860) 525-3101
Fax: (860) 247-5201
E-mail: krr@hksflaw.com

BY: /s/ Joseph Lipari
Joseph Lipari
(pro hac anticipated)
SULTZER & LIPARI, PLLC
85 Civic Center Plaza, Suite 200
Poughkeepsie, NY 12601
Tel: (845) 483-7100
Fax: (888) 749-7747
liparij@thesultzerlawgroup.com

**CERTIFICATION OF SERVICE**

I hereby certify that on May 6, 2026, a copy of foregoing was filed electronically and served by mail on anyone unable to accept electronic filing. Notice of this filing will be sent by e-mail to all parties by operation of the Court's electronic filing system or by mail to anyone unable to accept electronic filing as indicated on the Notice of Electronic filing. Parties may access this filing through the /court's CM/ECF System.

/s/ Keith R. Rudzik, Esq.
Keith R. Rudzik, Esq.
Howard, Kohn, Sprague & FitzGerald, LLP
237 Buckingham Street
Hartford, CT 06106
Tel: 860-525-3101
Fax: 860-247-4201
Fed. Bar. ct24007